

SENATE No. 3040

Senate, April 1, 2026 -- Text of the Senate Bill fostering agricultural resilience in Massachusetts
(Senate, No. 3040) (being the text of Senate No. 2029, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act fostering agricultural resilience in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23A of the General Laws is hereby amended by inserting after
2 section 10A the following section:-

3 Section 10A1/2. (a) The MOBD shall establish a Massachusetts food tourism task force
4 to identify, evaluate, make recommendations and implement such recommendations regarding
5 the challenges and benefits of marketing, promoting and selling consumer food, farm and
6 agricultural goods produced in the commonwealth.

7 (b) The task force shall consist of the director of MOBD or a designee, who shall serve as
8 chair; the secretary of the executive office of economic development or a designee; the director
9 of the office of real estate and economic development of the Massachusetts Department of
10 Transportation or a designee; the chief executive officer of the Massachusetts Port Authority or a
11 designee; the chair of the board of higher education at the department of higher education or a

designee; the commissioner of the department of agricultural resources or a designee; and the executive director of the office of travel and tourism or a designee.

(c) The task force shall: (i) identify and assess state-operated and state-owned locations suitable for marketing, promoting or selling consumer food, farm and agriculture goods produced in the commonwealth; (ii) provide information to businesses that produce consumer food, farm and agricultural goods in the commonwealth about state-operated and state-owned locations where these businesses may sell their goods; (iii) develop and maintain a public list of businesses or vendors of consumer food, farm and agriculture goods produced in the commonwealth; and (iv) develop and implement a brand to identify consumer food, farm and agriculture goods produced in the commonwealth for purposes of promoting and marketing said goods.

(d) The MOBD may expend such funds as may be appropriated therefor and may accept federal funds or private gifts and grants to assist it in carrying out the purposes of this section.

(e) Annually, not later than November 1, the task force shall report to the clerks of the senate and house of representatives and the joint committee on tourism, arts and cultural development on the activities of the task force including, but not limited to: (i) any challenges identified to the marketing, promotion and selling of consumer food, farm and agricultural products produced in the commonwealth; (ii) actions taken or recommended to address such challenges; (iii) an assessment of the effectiveness of connecting businesses that produce consumer food, farm and agricultural goods with state-operated and state-owned locations where such businesses can sell such goods; and (iv) any other factors as determined by the MOBD.

(f) The MOBD shall promulgate regulations to implement this section.

SECTION 2. Section 23B of chapter 7 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(d)(1) Notwithstanding any general or special law to the contrary, the state purchasing agent, in collaboration with the commonwealth's 4 regional food banks, the executive office of aging and independence, the department of agricultural resources, the department of transitional assistance, the department of higher education and the department of elementary and secondary education, shall annually, not later than October 31, report on the distribution of products of agriculture, which, for the purposes of this subsection, shall include seafood and processed foods, through food assistance programs that receive state funding. The report shall include, but not be limited to:

(i) the quantity of products of agriculture distributed, by dollar value and as a percentage of total food distributed and, where possible, by weight;

(ii) a breakdown of the types of products of agriculture distributed, including, but not limited to, seafood and processed food, including whether or not the processed food includes ingredients grown, raised or caught in the commonwealth, by dollar amounts and as a percentage of total food distributed and, where possible, by weight;

(iii) a breakdown of the number and names of farms, delineated by municipality, from which products of agriculture are sourced for food assistance programs that receive state funding;

(iv) the quantity of products of agriculture distributed by food assistance programs that receive state funding including, but not limited to, the Massachusetts emergency food assistance program, the Massachusetts healthy incentives program, universal free school meals, the hunger-

free campus initiative, the farming reinforces education and student health grant program, the senior nutrition program, the Meals on Wheels program and the senior farm share program, by dollar amounts and as a percentage of total food distributed and, where possible, by weight; and

(v) recommendations on how the commonwealth can increase the amount of products of agriculture distributed through food assistance programs that receive state funding in future fiscal years while maintaining affordability and fairly valuing local food, and as budgetary or policy recommendations for implementing such recommendations.

(2) The report shall be made available on the operational service division's website and a copy shall be filed with the clerks of the house of representatives and the senate, the joint committee on agriculture and fisheries and the joint committee on children, families and persons with disabilities.

SECTION 3. The third paragraph of subsection (a) of section 23 of chapter 20 of the General Laws, as so appearing, is hereby amended by inserting after the second sentence the following sentence:-

To determine the extent to which each factor contributed to the enrollment of land in the program, the review may include an assessment of factors including, but not limited to: (i) the suitability and productivity of land for agricultural use based on soil classification, physical features and location; (ii) the degree of threat to the continuation of agriculture on the land due to circumstances including, but not limited to, the landowner's health, retirement, financial positions, development pressure or insecurity due to rental agreements; (iii) the size or composition of the land that determines whether it is economically viable for agricultural purposes, and the likelihood that it will remain in agricultural use in the future; (iv) the estimated

amount and type of crop production; (v) soil health, water recharge areas, biodiversity, carbon sequestration and other ecosystem services; (vi) existing infrastructure located on the land; (vii) access to markets; (viii) access to land ownership for historically marginalized communities; (ix) opportunities to meet or further environmental justice principles as defined in section 62 of chapter 30; and (x) any other factors as determined by the department. The review may evaluate: (A) the number of acres newly enrolled in an agricultural preservation restriction during the past year and the total number of acres enrolled in an agricultural preservation restriction in the commonwealth; (B) the total number of farms that have acquired a new agricultural preservation restriction during the past year and the total number of farms holding an agricultural preservation restriction in the commonwealth; (C) the geographic distribution of farms enrolled in an agricultural preservation restriction; and (D) challenges to enrolling new land in an agricultural preservation restriction.

SECTION 4. Said Chapter 20 is hereby further amended by adding the following 2 sections:-

Section 34. Subject to appropriation, there shall be established a food security infrastructure grant program to support equitable access to healthy, local food and to strengthen food supply and distribution systems in all geographic regions of the commonwealth, which shall be administered by the commissioner. The commissioner may award grants under the program to: (i) food producers, processors and distributors; (ii) emergency food distributors; (iii) community and food organizations; (iv) school meal programs and summer meal sponsors; (v) urban farms and community gardens; and (vi) nonprofit food security organizations; provided, however, that grants awarded under this section shall be used to fund capital improvements, including, but not limited to: (A) the purchase of new or used equipment; (B) contracted labor

costs in order to implement projects; and (C) costs associated with planning and design directly related to capital projects that strengthen and improve the resiliency of the commonwealth's food system while facilitating greater access to fresh, local food and addressing systemic inequities.

Section 35. The department shall develop and maintain a plan to support agricultural, seafood and processed food production in the commonwealth to mitigate the impacts of food supply chain disruptions. The plan shall be developed in coordination with the Massachusetts emergency management agency, the division of marine fisheries, the department of public health and the department of transitional assistance and shall include consideration for food production, transportation, storage and distribution. The plan shall be reviewed and updated every 5 years. The commissioner shall submit the plan, along with any updates made pursuant to this section, to the clerks of the house of representatives and the senate, the joint committee on agriculture and fisheries and the joint committee on emergency preparedness and management.

SECTION 5. Chapter 21G of the General Laws is hereby amended by adding the following section:-

Section 21. (a) Registration statements and permits for withdrawals for use in cranberry production may be transferred to and used for mitigation by other permitted or registered users if such statement and permits were valid from January 1, 2003 through December 31, 2005. The portion of water lost to the basin may be eligible for use as mitigation by such permitted users.

(b) Consumptive loss to the basin shall be determined based on industry-wide water use standards.

SECTION 6. Section 2WWW of chapter 29 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(l) Money in the fund may be transferred to the Next Generation Farmers Fund established in section 20000000.

SECTION 7. Chapter 29 of the General Laws is hereby amended by inserting after section 2NNNNNN the following 2 sections:-

Section 20000000. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund to be known as the Next Generation Farmers Fund. The fund shall be administered by the secretary of labor and workforce development, in consultation with the secretary of energy and environmental affairs, the secretary of education and the commissioner of agricultural resources.

(b) The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public or private sources, including gifts, grants, donations, rebates and settlements received by the commonwealth that are specifically designated to be credited to the fund; and (iii) interest earned on any money in the fund. Amounts credited to the fund shall be expended without further appropriation and the unexpended balance in the fund at the close of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the fund to be in deficit at any point. Money in the fund shall be awarded as grants for the purpose of agricultural workforce development to public institutions of higher education, vocational technical schools and community-based organizations with existing programs for providing workforce development training to entry-level farmers or the capacity to create such programs. Priority consideration shall be given to programs that serve a high percentage of historically underserved or low-income students or people with disabilities,

programs operated by nonprofit organizations that house homeless veterans and include food production or distribution training and programs that include hands-on training and training in agricultural practices that mitigate climate change and protect the environment.

(c) Annually, not later than May 30, the secretary of labor and workforce development shall submit a report detailing the expenditures of the fund to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on economic development and emerging technologies and the joint committee on agriculture and fisheries.

Section 2PPPPPP. (a) For the purposes of this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“Urban agriculture”, an activity which meets the definition of “agriculture” in section 1A of chapter 128 and takes place in urban and suburban areas and which shall include, but not be limited to, recreational and educational farming and gardening and other agricultural enterprises.

“Vacant lot”, a parcel which is not actively used or occupied and that has not been actively used or occupied within at least the preceding year, including, but not limited to, abandoned, empty and foreclosed properties. “Vacant lot” shall not mean a parcel which is the site of ongoing renovations or repairs due to fire or other casualty.

(b) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue, fund to be known as the Vacant Lots to Urban Agriculture Fund. The fund shall be administered by the department of agricultural resources and shall be credited with: (i) revenue from appropriations or other money authorized by the general court and

specifically designated to be credited to the fund; (ii) funds from public and private sources such as gifts, grants and donations; and (iii) interest earned on money in the fund. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the close of a fiscal year shall not revert to the General Fund and shall remain available for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the fund to be in deficit at any point.

(c) The purpose of the fund shall be to support the introduction of urban agriculture to vacant lots. Priority consideration shall be given to projects located in socially or economically disadvantaged communities that support increased economic development, food security, climate and heat resilience, agricultural education, job training, donations of food to food-insecure residents, public engagement, utilization of controlled-climate growing infrastructure and agricultural systems or other agricultural practices backed by climate science. Grants from the fund shall be awarded for: (i) municipalities to collaboratively develop urban agriculture plans with residents, local food system businesses, nonprofit organizations or other organizations and regional planning agencies; (ii) municipalities, urban agriculture organizations or businesses to assist in the purchasing of privately owned parcels; (iii) municipalities, urban farming businesses or nonprofit organizations to purchase or lease land, renovate land, build infrastructure or assist in urban agriculture startup costs; (iv) establishing pilot programs in socially or economically disadvantaged communities to introduce urban agriculture to vacant lots; (v) moving a municipally-held tax land lien that was foreclosed to agricultural use; or (vi) protecting a parcel with a conservation easement.

(d) The department of agricultural resources shall provide outreach and application materials for the grant program in multiple languages.

(e) The commissioner of agricultural resources shall promulgate regulations for the administration and implementation of this section.

(f) Annually, the commissioner of agricultural resources shall file a report with the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the clerks of the house of representatives and the senate which shall include, but shall not be limited to: (i) a list of grant applicants and the municipalities in which the vacant lots are located; (ii) a list of grant recipients and the municipalities in which the vacant lots y are located; (iii) the amount of funds requested by applicants; (iv) the associated awarded grant amounts; and (v) the number of socially or economically disadvantaged populations served by the awards made by the fund.

SECTION 8. Section 20 of chapter 30B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(c) The department of agricultural resources shall conduct a public information campaign to notify governmental bodies of the program to establish a preference for products of agriculture as defined in section 1A of chapter 128 not less than every 5 years. The department may develop a mechanism for a governmental body that establishes a preference under subsection (a) to notify the department of such vote to establish such preference.

SECTION 9. Section 3 of chapter 40A of the General Laws, as so appearing, is hereby amended by striking out, in lines 6 and 7, the words “or viticulture,” and inserting in place thereof the following words:- , viticulture or for agritourism, as defined in section 1B of chapter 128, on land used for the primary purpose of commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture.

SECTION 10. Section 5 of chapter 59 of the General Laws, as so appearing, is hereby amended by adding the following clause:-

Fifty-ninth. (a) For the purposes of this clause, the following words shall have the following meanings unless the context clearly requires otherwise:

“Agricultural”, the activity of raising, breeding and boarding of livestock, including, but not limited to, commercial horse boarding operations.

“Structures and buildings”, structures and buildings or portions thereof used directly and exclusively in the raising and production for sale of agricultural and horticultural commodities or necessary for the storage thereof; provided, however, that a municipality may also vote to include as “structures and buildings” the following: (i) structures and buildings or portions thereof used for the processing of agricultural and horticultural commodities or the retail merchandising of such commodities produced or raised in the commonwealth; (ii) structures and buildings used to provide housing for regular and essential employees and their immediate families who are primarily employed in connection with the operation of lands actively devoted to agricultural and horticultural use, but not including structures and buildings occupied as a residence by the applicant and the applicant’s immediate family; (iii) structures and buildings used as indoor exercise arenas exclusively for training and exercising horses in connection with the raising and production for sale of agricultural and horticultural commodities or in connection with a commercial horse boarding operation; provided, however, that indoor exercise arenas shall not include a horse ranch offering guest lodging and services or a riding academy that solely provides equine riding lessons; (iv) structures and buildings used in the production of

maple syrup; and (v) structures and buildings used in the production of honey and beeswax including those structures and buildings used for the storage of bees.

(b) A city or town that accepts this clause may exempt from taxation any increase in value that results from the construction or reconstruction of structures and buildings essential to the operation of land that is actively devoted to the primary purpose of commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture and that is used and occupied to carry out such operation consistent with section 1A of chapter 128 for a period of not more than 5 years. A city or town may establish a limit on the value exempt from taxation.

(c) An exemption from taxation under this clause shall be granted only upon an application by the owner of the building or structure on a form prescribed by the commissioner. The applicant shall furnish such information as the municipality's board of assessors may require. Such application shall be filed with the assessor of the municipality having the power to assess property for taxation not later than the appropriate taxable status date of such municipality and not more than 1 year after the date of completion of construction or reconstruction of structures and buildings. The assessor of the municipality may approve an application upon a finding the applicant is entitled to an exemption. Structures or buildings that receive such approval shall be exempt from taxation as provided under this clause. The assessed value of any exemption granted under this clause shall be entered by the assessor on the portion of the assessment roll provided for property exempt from taxation. An exemption granted pursuant to this clause shall continue, for not more than 5 years, only while such buildings and structures are used and occupied as provided herein.

(d) In the event that land or buildings or structures in agricultural or horticultural use are converted to non-agricultural or non-horticultural use during the period of an exemption granted pursuant to this clause, the structures or buildings upon which the exemption was granted shall be subject to roll-back taxes for the period during which the exemption was operative. The assessors of the appropriate assessing unit shall enter on the taxable portion of the assessment roll of the current year the assessed valuation or valuations of the structures or buildings on which exemption was granted in any prior year or years at the assessed valuation or valuations as set forth on the exempt portion of the assessment roll. The amount of roll-back taxes for structures and buildings subject thereto pursuant to this clause shall be computed by the appropriate tax levying body by applying the applicable tax rate for each such prior year to the assessed valuation, as set forth on the exempt portion of the assessment roll, for such structures or buildings. Such roll-back taxes shall be levied and collected in the same manner and at the same time as other taxes are imposed and levied under this chapter.

SECTION 11. Section 2A of chapter 61A of the General Laws, as so appearing, is hereby amended by adding the following subsection:-

(e)(1) As used in this subsection, the following words shall have the following meanings unless the context clearly requires otherwise:

“Commissioner”, the commissioner of agricultural resources.

“Department”, the department of agricultural resources.

“Farm viability”, the financial and environmental ability of a farm to remain in operation and produce crops over the short and long term.

“Farmland”, land primarily and directly used for agricultural purposes pursuant to section 1 or land primarily and directly used for horticultural purposes pursuant to section 2.

(2) Notwithstanding any general or special law to the contrary, the department, in coordination with the department of energy resources, shall, once every 10 years or at such other frequency as determined by the commissioner, whichever is more frequent, review and consider whether any amendments to statutory, regulatory and deed-based restrictions on the amount of renewable energy allowed to be generated on farmland, including, but not limited to, land assessed or taxed under this chapter and land in the agricultural preservation restriction program established pursuant to section 23 of chapter 20, would help preserve or improve farm viability while considering the commonwealth’s renewable energy goals pursuant to the roadmap plans required under section 5 of chapter 21N. The department shall, in determining whether and which amendments to recommend, consider whether alternative measures such as updated or modernized farm management or business practices could achieve the same or similar improvements in farm viability as well as the commonwealth’s current ability to support farmers in updating said practices. The department shall additionally factor into its review and consideration the impact on food production in the commonwealth, the promotion of healthy soils and biodiversity, environmental sustainability and the commonwealth’s renewable energy goals pursuant to the roadmap plans required under section 5 of chapter 21N. If the department concludes that amendments to the restrictions on the amount of renewable energy allowed to be generated on farmland are warranted, the commissioner shall include a list of the department’s specific recommended amendments in the department’s report.

(3) The department, not later than 90 days after the completion of the review under paragraph (2), shall report the findings of its review to the clerks of the house of representatives

and the senate, the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the joint committee on environment and natural resources.

SECTION 12. Section 12 of said chapter 61A, as so appearing, is hereby amended by adding the following paragraph:-

For the purposes of this paragraph, “PFAS” shall mean a class of fluorinated organic chemicals containing at least 1 fully fluorinated carbon atom.

No conveyance tax under this section shall be assessed on land removed from agricultural or horticultural or agricultural and horticultural use due to regulatory action based on the actual or suspected presence of PFAS in soil, water, livestock or agricultural products derived from such land; provided, however, that said regulatory action: (i) is not taken in response to a willful violation of law or regulation by the owner; and (ii) renders the continued use of such land economically infeasible. The commissioner of revenue, in consultation with the commissioner of agricultural resources and the commissioner of environmental protection shall promulgate regulations to implement this paragraph.

SECTION 13. Section 13 of said chapter 61A, as so appearing, is hereby amended by inserting after the fourth paragraph the following paragraph:-

For the purposes of this paragraph, “PFAS” shall mean a class of fluorinated organic chemicals containing at least 1 fully fluorinated carbon atom.

No roll-back tax imposed by this section shall be assessed on land that no longer meets the definition of land actively devoted to agricultural, horticultural or agricultural and horticultural use due to regulatory action regarding the actual or suspected presence of PFAS in

soil, water, livestock or agricultural products derived from such land provided that said regulatory action: (i) is not taken in response to a willful violation of law or regulation by the owner; and (ii) renders the continued use of such land economically infeasible. The commissioner of revenue, in consultation with the commissioner of agricultural resources and the commissioner of environmental protection shall promulgate regulations to implement this paragraph.

SECTION 14. Said chapter 61A is hereby further amended by adding the following section:-

Section 25. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Agricultural land”, land deemed to be in agricultural use pursuant to section 1.

“Horticultural land”, land considered to be in horticultural use pursuant to section 2.

(b) The department of revenue, in consultation with the department of agricultural resources, shall establish and maintain a central registry of all agricultural land in the commonwealth. The department of revenue shall update the registry on a biennial basis or at such other frequency as determined by the commissioner of revenue, whichever is more frequent. The commissioner of revenue shall facilitate information sharing among federal, state and local entities. The registry shall include, but not be limited to:

(i) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land;

(ii) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land taxed pursuant to this chapter;

(iii) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land that were disqualified from taxation pursuant to this chapter during the preceding tax year;

(iv) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land that are taxed pursuant to this chapter that were not taxed pursuant to this chapter in the preceding tax year; and

(v) the percentage of all cropland in the commonwealth, as reported in the most recent United States Department of Agriculture Census of Agriculture, that is taxed pursuant to this chapter.

(c) The department of agricultural resources shall, in consultation with the department of revenue, integrate the data from the central registry established pursuant to subsection (b) into a publicly accessible, interactive map with data shown at both the individual parcel and municipal level. The map shall be created in a format that allows for comparison and overlays with existing maps of soil conditions and types. The department shall make the central registry and the map publicly available, downloadable and searchable on its website.

SECTION 15. Chapter 69 of the General Laws is hereby amended by adding the following sectionn:-

Section 40. (a) (1) The department shall, subject to appropriation, administer a Massachusetts farm-to-school program, consisting of a grant program to strengthen the

commonwealth's food and agriculture economy, improve student health and nutrition and build food literacy among students. The program shall build the capacity of primary and secondary schools and licensed childcare programs to purchase ingredients grown, raised, caught and processed in the commonwealth.

(2) The department shall establish an advisory committee to advise the department on the development and administration of the farm-to-school program. The committee shall include a representative from each of the department of agricultural resources, the department of early education and care, the division of marine fisheries, Massachusetts Farm to School and the School Nutrition Association of Massachusetts, Inc., and a geographically and demographically diverse group of stakeholders appointed by the commissioner.

(b) Annually, the department shall submit a report of the farm-to-school program's activities to the clerks of the house and the senate, the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the joint committee on education, which shall include, but not be limited to: (i) the number, type of organization and award amount to grantees; (ii) details of food literacy education associated with the program; and (iii) any recommendations to improve the performance of the program.

SECTION 16. Section 14D of chapter 75 of the General Laws, as so appearing, is hereby amended by striking out the second and third paragraphs and inserting in place thereof the following 2 paragraphs:-

The board shall consist of the president of the university or a designee; the chancellor of the University of Massachusetts at Amherst or a designee; the commissioner of food and agriculture or a designee; and the following persons to be appointed by the governor: 4 members

381 of Massachusetts Farm Bureau Federation, Incorporated chosen from a list of 12 members
382 submitted by said federation, 1 of whom shall represent cranberry producers; 1 member of
383 Massachusetts 4-H Foundation, Inc. chosen from a list of 3 members submitted by said
384 organization; 1 member of the Massachusetts Forestry Association, Inc. chosen from a list of 3
385 members submitted by said association; 1 member of Massachusetts Audubon Society, Inc.
386 chosen from a list of 3 members submitted by said society; 2 members of Massachusetts
387 Arborists Association, Inc. chosen from a list of 5 members submitted by said association; 1
388 member of a regional agriculture Buy Local organization chosen from a list of 3 members
389 submitted by said organization; 1 member of the Massachusetts Food System Collaborative
390 chosen from a list of 3 members submitted by said collaborative; 1 member from an organization
391 engaged in urban farming education or practices; 2 members of organizations that support
392 historically marginalized or new entry farmers and food producers; and the senate and house
393 chairs of the joint committee on agriculture and fisheries or their designees, who shall be
394 nonvoting members. The chancellor of the University of Massachusetts at Amherst shall appoint
395 the chair from among the membership of the board. Members of the board shall serve without
396 compensation but shall be reimbursed, subject to appropriation, out of any funds available for the
397 purpose, for necessary expenses incurred in the performance of their official duties. Non-voting
398 members shall serve on the board in an advisory capacity and shall not be reimbursed for
399 necessary expenses.

400 The appointed members of the board shall serve for terms of 5 years, except for persons
401 appointed to fill vacancies, who shall serve for the remainder of the unexpired term. The board
402 shall hold an annual meeting in January and not less than 3 other times during the year. The
403 University of Massachusetts Extension director shall attend all meetings of the board and shall

serve as secretary but shall have no vote in its deliberation. A simple majority of appointed voting members of the board shall constitute a quorum. The board may, by vote of its members then in office, adopt a policy for the conduct of business, including constitution of board membership. Policies may be amended or repealed by a 2/3 vote of its members.

SECTION 17. Chapter 128 of the General Laws is hereby amended by inserting after section 1A the following section:-

Section 1B. (a) “Agritourism”, an agriculturally related educational, entertainment, historical, cultural, commercial or recreational activity that allows or invites members of the general public to observe, participate in, experience and enjoy that activity, and serves to encourage the purchase of agricultural products that are produced on the land where the activity takes place, or on other land within the commonwealth that is primarily used for commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture and that is owned by the same person who owns the land where the activity takes place, provided that the activity conducted on land primarily used for commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture as provided in section 3 of chapter 40A.

(b) The department shall promulgate regulations that include minimum land and revenue thresholds for agritourism activities; provided, however, that such regulations shall ensure that agritourism activities shall not unreasonably detract or derogate from agricultural production.

SECTION 18. Said chapter 128 of the General Laws is hereby amended by inserting after section 2E the following section:-

Section 2F. (a) The department of transitional assistance, in partnership with the department of agricultural resources and the department of public health, shall, subject to

appropriation, operate a healthy incentives program. The program shall provide that recipients actively receiving Supplemental Nutrition Assistance Program benefits, established pursuant to the Food and Nutrition Act of 2008, 7 U.S.C. section 2011, hereinafter referred to as SNAP, shall be entitled to an additional benefit via their electronic benefit transfer card redeemable for eligible fruit and vegetable purchases at participating vendors in an amount to be established by the department. When expanding the number of participating vendors, the department shall prioritize improving access in areas with limited access to fresh, local produce and that are historically underserved by the program. The department shall collaborate with local food coalitions and nonprofit groups to develop community outreach strategies that ensure equitable access to, and knowledge of, the program.

(b) The department of transitional assistance and its partners may apply for any available federal programs such as the Gus Schumacher Nutrition Incentive Program administered by the United States department of agriculture to provide matching benefits.

(c) The department of transitional assistance shall, annually on or before January 31, submit a report of the healthy incentives program's activities to the clerks of the house and the senate, the house and senate committees on ways and means, the joint committee on children, families and persons with disabilities and the joint committee on agriculture and shall post the report on the department's website. The report shall include, but not be limited to: (i) the number of households utilizing the program, including household size, age and racial demographic information; (ii) the number of program transactions; (iii) the number and name of vendors processing program transactions; (iv) a breakdown of the total number of program participants and vendors, by their municipality; (v) the number of vendors, by their municipalities, who applied to be a vendor with the healthy incentives program but were not accepted as a vendor

449 due to funding or administrative shortages; (vi) the department's efforts, plans and timeline for
450 identifying geographic areas that are underserved by the program and increasing program
451 activity in those areas, including metrics and factors to be used to make determinations for the
452 addition and siting of vendors; and (vii) any further recommendations to improve the
453 performance of the program.

454 SECTION 19. The department of agricultural resources, in administering the climate
455 smart agriculture program, may prioritize projects that incorporate carbon dioxide removal
456 methods including, but not limited to, biochar, terrestrial enhanced weathering and agricultural
457 soils carbon sequestration. The department may, to the extent feasible, align the program's
458 standards for carbon dioxide removal with the United States Department of Agriculture, Natural
459 Resources Conservation Service, conservation practice standards that are applicable to carbon
460 dioxide removal.

461 SECTION 20. The department of elementary and secondary education, in consultation
462 with the department of agricultural resources, shall conduct a study and make recommendations
463 on the feasibility of establishing additional county agricultural schools under chapter 74 of the
464 General Laws.

465 The study shall: (i) assess the statewide and regional demand for agricultural and
466 agricultural technical education pathways; (ii) evaluate the workforce needs across agricultural
467 and other related sectors; and (iii) identify potential sites or host districts for new or expanded
468 agricultural schools.

469 The department of elementary and secondary education and the department of
470 agricultural resources shall solicit public input and hold not less than 4 public hearings to collect

public comment for the study, one of which shall be in Worcester county. Notice of said public hearings shall be provided to the Massachusetts Association of School Committees, Massachusetts Association of School Superintendents and Massachusetts Municipal Association. The department of elementary and secondary education shall post on their website a draft report not later than December 31, 2026 and hold 1 additional public hearing to solicit comment on said draft report. The department shall submit a final report with their findings and recommendations, including any regulatory or legislative changes that may be necessary to implement the recommendations, not later than July 1, 2027, to the clerks of the house of representatives and senate, the joint committee on education, the joint committee on agriculture and fisheries and the senate and house committees on ways and means.

SECTION 21. Not later than 1 year following the effective date of this act, the Massachusetts emergency management agency shall complete the first plan required under section 18BB of chapter 6A of the General Laws.

SECTION 22. Not later than 120 days following the effective date of this act, the Massachusetts department of business development shall promulgate regulations to implement section 10A1/2 of chapter 23A of the General Laws.

SECTION 23. Not later than 120 days following the effective date of this act, the department of agricultural resources shall promulgate regulations to implement section 34 of chapter 20 of the General Laws.

SECTION 24. Not later than December 31, 2026, the department of environmental protection shall establish regulations necessary to implement section 21 of chapter 21G of the General Laws.

493 SECTION 25. Not later than 6 months following the effective date of this act, the
494 department of agricultural resources shall complete the first report required by subsection (e) of
495 section 2A of chapter 61A of the General Laws.

496 SECTION 26. Not later than 1 year following the effective date of this act, the
497 department of revenue shall establish and host on its website the registry and map required
498 pursuant to section 25 of chapter 61A of the General Laws.